

The Kerala State Housing Board vs National Consumer Disputes Redressal ... on 30 June, 2025

2025:KER:47396

OP(NCDRC) NO. 4 OF 2025

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IN THE HIGH COURT OF KERALA AT ERNAKULAM

PRESENT

THE HONOURABLE MR.JUSTICE ZIYAD RAHMAN A.A.

MONDAY, THE 30TH DAY OF JUNE 2025 / 9TH ASHADHA, 1947

OP(NCDRC) NO. 4 OF 2025

ARISING FROM JUDGMENT DATED 28.01.2020 IN RP NO.152

OF 2025 OF NATIONAL CONSUMER DISPUTES REDRESSAL
COMMISSION, NEW DELHI

PETITIONERS:

- 1 THE KERALA STATE HOUSING BOARD
THIRUVANANTHAPURAM, REPRESENTED BY ITS
SECRETARY, HOUSING BOARD BUILDING SANTHI NAGAR,
THIRUVANANTHAPURAM, PIN - 695001
- 2 SECRETARY
THE KERALA STATE HOUSING BOARD
THIRUVANANTHAPURAM, HOUSING BOARD BUILDING
SANTHI NAGAR, THIRUVANANTHAPURAM, PIN - 695001

BY ADV SHRI.AMRITH M.J.

RESPONDENTS:

- 1 NATIONAL CONSUMER DISPUTES REDRESSAL COMMISSION
UPBHOKTA NYAY BHAVAN, G- BLOCK, GPO COMPLEX,
INA, NEW DELHI, PIN - 110023

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- 2 KERALA STATE CONSUMER DISPUTES REDRESSAL
COMMISSION, SISU VIHAR LANE, VAZHUTHACAUD,

THIRUVANANTHAPURAM, PIN - 695010

3 T.S. JOHN
S/O T.C. SAMUEL THAZHOMPADICKAL, PLOT NO.7
TILAK NAGAR, NALANCHIRA (P.O.)
THIRUVANANTHAPURAM, PIN - 695004

BY ADV
ADV ARUN AJAY SHANKAR -GP

THIS ORIGINAL PETITION (NATIONAL CONSUMER DISPUTES
REDRESSAL COMMISSION) HAVING COME UP FOR ADMISSION ON
30.06.2025, THE COURT ON THE SAME DAY DELIVERED THE
FOLLOWING:

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JUDGMENT

The learned Counsel for the petitioners seeks permission to withdraw this original petition. Permission granted. Accordingly, this original petition is dismissed as withdrawn.

Sd/-

ZIYAD RAHMAN A.A. JUDGE scs 2025:KER:47396 OP(NCDRC) NO. 4 OF 2025 APPENDIX OF OP(NCDRC) 4/2025 PETITIONER EXHIBITS Exhibit-P1 TRUE COPY OF THE AGREEMENT EXECUTED BETWEEN THE HOUSING BOARD AND THE ORIGINAL ALLOTTEE SRI. MATRIN SELVARAJ DATED 05.03.1994 Exhibit-P2 TRUE COPY OF THE TRIPARTITE AGREEMENT DATED 17.12.1997. BETWEEN HOUSING BOARD, SRI. MARTIN SELVARAJAN AND T.S. JOHN Exhibit-P3 TRUE COPY OF THE COMPLAINT DATED 07.04.2011 FILED BY THE RESPONDENT BEFORE THE DISTRICT CONSUMER DISPUTES REDRESSAL FORUM, THIRUVANANTHAPURAM Exhibit-P4 TRUE COPY OF THE VERSION FILED BY THE PETITIONER/OPPOSITE PARTIES IN CC NO.130/2011 DATED 13.07.2011 Exhibit-P5 TRUE COPY OF THE APPEAL MEMORANDUM FILED BY THE PETITIONER, KERALA STATE HOUSING BOARD DATED 12.03.2014, BEFORE THE STATE CONSUMER DISPUTES REDRESSAL COMMISSION Exhibit-P6 TRUE COPY OF THE JUDGEMENT ISSUED BY THE STATE CONSUMER DISPUTES REDRESSAL COMMISSION DATED 16.10.2018 Exhibit -P7 TRUE COPY OF THE EXECUTION PETITION FILED BY THE RESPONDENT DATED 21.10.2019 Exhibit-P8 TRUE COPY OF THE JUDGMENT DATED 16.11.2019 PASSED BY THE HIGH COURT OF KERALA IN WRIT PETITION NO. 30950/2019 Exhibit P-9 TRUE COPY OF THE MEMORANDUM OF THE REVISION PETITION FILED BY THE PETITIONER BEFORE THE 1ST RESPONDENT 2025:KER:47396 OP(NCDRC) NO. 4 OF 2025 Exhibit P-10 TRUE COPY OF THE APPLICATION FOR CONDONATION OF DELAY IA NO. 1200/2020 DATED 23.01.2020 Exhibit

P-11 A CERTIFIED COPY OF THE FINAL JUDGEMENT AND ORDER OF THE 1ST RESPONDENT DATED 28.01.2020 Exhibit P-12 TRUE COPY OF THE MEMORANDUM OF SPECIAL LEAVE PETITION NO. 8225/2020 DATED 20.03.2020 Exhibit P-13 A TRUE COPY OF THE ORDER DATED 20.08.2020 OF THE HON'BLE SUPREME COURT Exhibit P-14 TRUE COPY OF THE ORDER NO.

E2/S-7/NLA(PT) OF THE PETITIONER DATED 14.09.2020 Exhibit P-15 TRUE COPY OF THE FINAL ORDER OR JUDGEMENT OF THE HON'BLE SUPREME COURT DATED 05.12.2023